

Data Privacy Assessment

This is a brief assessment of whether the open publication of the dataset **“Background data for: Patient-Tailored Levothyroxine Dosage with Pharmacokinetic/Pharmacodynamic Modeling: A Novel Approach After Total Thyroidectomy”** (henceforth *Dataset*) in DataverseNO is aligned with applicable legal and research-ethical regulations and guidelines.

As DataverseNO is operated in Norway and the study was carried out in Norway and Sweden, the assessment is mainly based on the following legal and research-ethical frameworks:

- Common European guidelines on research integrity as described in the document “The European Code of Conduct for Research Integrity” (ALLEA, 2023).
- Common European legal regulations as described in the document “Ethics and data protection” (European Commission, 2021a) and in the Personal Data Act (Personopplysningsloven, 2018), which is the Norwegian implementation of the General Data Protection Regulation (GDPR).
- Norwegian legislation on medical and health research as regulated in the Act on medical and health research (Health Research Act, 2008; Helseforskningsloven, 2008) and guidelines by The Norwegian National Research Ethics Committee for medical and health research (NEM) (The Norwegian National Research Ethics Committee for medical and health research (NEM), 2019).

In addition, more specific (e.g., regional, institutional and/or domain-specific) regulations and guidelines are applied in case they are more restrictive than the common European and national Norwegian ones, or in other ways may be relevant for the assessment, to the extent such documents exist and could be provided by the data depositor.

The assessment was carried out in **April 2026** by **Huw Haugland-Grange** (DataverseNO data curator) and **Solveig Konst** (author, data depositor). The author/data depositor is responsible for the truthfulness of the assessment. The research organization with the administrative responsibility for the Dataset (see the Producer field in the metadata record of the Dataset) is responsible for any legal and research-ethical consequences that may arise due to actions taken based on the assessment.

To assess whether the open publication of the Dataset in DataverseNO is aligned with applicable legal and research-ethical rules and guidelines, the following issues were addressed:

- 1) For data from medical and health research projects, was the project pre-approved by the Regional committees for medical and health research ethics (REK)?
- 2) Does the Dataset contain personal data?
- 3) Did the participants provide valid consent to open publication of the Dataset? If the answer is no:
- 4) Are there other considerations that suggest that it is legally and research-ethically justifiable to publish the Dataset with open access? If the answer is yes:
- 5) Is it possible to inform the participants in a research-ethically responsible way about the (open) publication of the Dataset?

Question 1: Pre-approval by REK

a) Does the research project fall under the Health Research Act, i.e. does the project aim to “generate new knowledge about health and disease”?

Yes.

b) Has the research project received pre-approval from the Regional Committee for Medical and Health Research Ethics (REK)?

The project received pre-approval by the Norwegian Regional Ethics Committee (2016/1782) and the Swedish Ethical Review Authority (443-17).

c) Is open archiving of this dataset in line with pre-approval by the Regional Committee for Medical and Health Research Ethics (REK)?

Yes.

Question 2: Personal data?

Does the Dataset contain personal data? (Here we disregard publication/bibliographic and contact information about researchers who have been involved in the research project, as it is necessary for scholarly publications to contain such information.)

We may address this question by answering the following questions from the guide “Control of anonymity” issued by the Norwegian Centre for Research Data (Norwegian Centre for Research Data, n.d.), rendered in italics below:

1a) Do the data contain directly identifiable personal data such as personal identification numbers, names, addresses or phone numbers?

No.

1b) Do the data contain indirectly identifiable personal data? This is determined by:

- *combining different information, e.g. geographical information/variables (municipality number, ward or district) with other background information such as income, education, occupation or position.*

The data file Patient-demographic.txt includes the variables **Height, Weight, Sex, Diagnosis and Age at surgery**. It is not possible to indirectly identify living individuals by combining different information contained in the dataset.

- *checking the sample size. In a small sample, information such as gender or age can make the personal data indirectly identifiable.*

It is not possible to identify living individuals from information in the dataset due to the size of the sample.

- *checking the composition of the sample. If, for example, a sample's gender or age distribution is biased, it may be enough to make the data indirectly identifiable.*

It is not possible to identify living individuals from information in the dataset due to the composition of the sample.

- *checking the data's degree of detail. If, for example, the occupation and education variables are very detailed (four or five-digit level), the data set is more likely to be indirectly identifiable.*

It is not possible to identify living individuals from information in the dataset due to the granularity of the data.

Conclusion: The dataset does not contain personal data. Therefore, the processing of the data contained in this Dataset is no longer subject to applicable data protection regulations as described in the Personal Data Act (Personopplysningsloven, 2018).

Question 3: Valid Consent?

Did the participants provide valid consent to open publication of the Dataset?

The Dataset does not contain personal data and processing the data contained in the Dataset is thus not subject to data protection regulations as described in the Personal Data Act. Therefore, from a legal point of view, there is also no requirement for consent to further processing of the data in the Dataset. On the

other hand, research-ethical principles expect that any processing of information from research projects in which natural persons are or have been involved should in principle be based on valid consent from the participants. This also holds for processing the data after the project has finished:

From a research ethics perspective, and in accordance with the principles of fair and transparent data processing, if you intend to use or make their data available for future research projects, it is best practice to obtain their additional, explicit consent to the secondary use of the data. (European Commission, 2021a, p. 12)

Participants in the project consented to publication of anonymized data from the project.

Conclusion: Participants gave valid consent to publication of anonymized data from the project. Although “open” publication is not explicitly mentioned, it is reasonable to expect that participants understood that “publication” included open forms of publication.

Overall Conclusion

Based on the assessment above, our overall conclusion is that the open publication of the data in the Dataset is in line with applicable legal and research-ethical rules and guidelines.

References

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